

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

STEPHANIE TRAMICHECK,

Petitioner

VS.

ALEXANDER CASSASSOVICI,

Respondent

) Case Number: FDI-25-800898

) Hearing Date: June 16, 2026

) Hearing Time: 9:00 AM

) Department: 403

) Presiding: BOBBY P. LUNA

REQUEST FOR ORDER: PROPERTY CONTROL, SALE OF COMMUNITY REAL PROPERTY;
HELOC; WATTS

TENTATIVE RULING

Having read and considered the pleadings, declarations, and other evidence submitted in this matter, the Court makes the following findings and orders:

A. Procedural History

- 1) The parties are Petitioner Stephanie Tramicheck and Respondent Alexander Cassassovici.
- 2) On 4/22/26, Respondent filed a Request for Order asking the Court to compel the sale of the community real property located at 421 27th Street, San Francisco, CA 94131 (marital residence) and issue related orders, including Petitioner to vacate the home within 30 days and selection of a listing agent. Respondent requests the Court authorize a home equity line of credit (HELOC) for costs incurred preparing the marital residence for sale and as an advancement of community property funds to both parties and designate a default escrow vendor. Respondent seeks Watts credits for Petitioner's use of the marital residence.
- 3) On 6/3/26, Petitioner filed a Responsive Declaration. Petitioner agrees to the sale of the marital residence and proposes a "Phased Sale Plan," which she requests the Court adopt. Petitioner requests the Court order all proceeds from the sale of the marital residence be maintained in a dual signature authorized account. Petitioner asks the Court to deny Respondent's request for

1 Watts credits or offset any Watts credits against Epstein credits when final judgment is entered.
2 Petitioner requests Respondent be ordered to contribute to the carrying costs on the marital
3 residence if she is ordered to vacate.

4 4) On 6/9/26, Respondent filed a Reply Declaration asserting that the parties agree on many issues
5 including the sale of the marital residence, listening agent, pre-sale repairs, a \$50,000 advance at
6 closing to each party, net sale proceeds distributed evenly, and Watts and Epstein issues reserved
7 for final judgment. Respondent states the only remaining issues are:

- 8 a. Petitioner's short-term rental of the marital residence;
- 9 b. The date certain on which Petitioner must vacate the marital residence so that it can be
10 listed for sale;
- 11 c. Reasonable access to the marital residence for the contractors and professionals necessary
12 for sale preparation, which should not exceed \$100,000;
- 13 d. Reasonable access to the marital residence for Respondent to retrieve personal
14 belongings;
- 15 e. Household furnishings to be reasonably divided before the marital residence is staged;
- 16 f. Remaining net sale proceeds to be deposited either in the Lerner Poole & Stewart firm
17 trust account or with a holding escrow company, pending the parties' written agreement
18 or further court order, unless Petitioner timely identifies a qualifying dual control bank.

19 **B. Findings and Order**

20 1) The Court adopts the parties' agreements as the order of the Court as follows:

- 21 a. The community real property located at 421 27th Street, San Francisco, CA 94131
22 (marital residence) will be listed for sale and Suhl Chin of Corcoran Icon Properties will
23 be the listing agent;
- 24 b. The pre-sale repairs will be performed, and the open permits closed before listing the
25 marital residence for sale;
- 26 c. Sale-preparation costs up to \$50,000 will be funded through the listing agent's affiliated
27 financing program (Notable / Icon Concierge) and repaid at close of escrow;
- 28 d. Each party will receive a \$50,000 advance from the proceeds at closing;
- 29 e. The balance of the net sale proceeds will be divided equally after all costs are paid; and

- 1 f. Watts and Epstein issues are reserved for final judgment.
- 2 2) Petitioner shall vacate the marital residence no later than 9/1/26, so that the marital residence can
- 3 be listed for sale no later than 9/1/26.
- 4 3) Until she has vacated the marital residence, Petitioner shall provide reasonable access for all
- 5 contractors and professionals needed to prepare it for sale.
- 6 4) Once she has vacated the marital residence, Respondent shall be responsible for 50% of all
- 7 carrying costs of the marital residence.
- 8 5) The selected listing agent, or another mutually agreed neutral third party, shall be authorized to
- 9 determine and direct the sale preparation — including inspections, permit closures, repairs,
- 10 enhancements, staging, vendor selection, and the associated budget, which shall not exceed
- 11 \$100,000 — on written notice to the parties, with each party allowed 24 hours to review such
- 12 notice, unless both parties object.
- 13 6) Household furnishings shall be reasonably divided when the selected listing agent, or another
- 14 mutually agreed neutral third party, recommends.
- 15 7) No rental occupancy of the marital residence or any portion of it shall continue beyond 7/30/26,
- 16 including no new listings, bookings, or extensions.
- 17 8) Respondent shall be granted reasonable access to the marital residence on a mutually agreed-upon
- 18 date to retrieve personal belongings and documents (clothing, toiletries, prescribed medication,
- 19 medical records, medical insurance card, driver's license, or state identification cards and any
- 20 other personal items).
- 21 9) After close of escrow, the net sale proceeds (i.e., the sale proceeds remaining after payment of the
- 22 mortgage, liens (including property taxes), closing costs, realtor fees, and the agreed \$50,000
- 23 advances) shall be deposited in the client trust account of Lerner Poole & Stewart or with a
- 24 holding escrow company, unless Petitioner identifies a bank with documented dual-signature
- 25 controls by 6/30/26. These funds shall be released only on the parties' written agreement or
- 26 further court order.
- 27 10) The Court will prepare the Findings and Order After Hearing.
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